2 Within three months after the end of each calendar year, the ship shall report to its Administration, or any organization du ly authorized by it, the attained annual operational CII via electronic communication and using a standardized format to be developed by the Organization.

3 Notwithstanding 1 and 2 of this regulation, in the event of any transfer of a ship addressed in regulations 27.4, 27.5 or 27.6 completed after 1 January 2023, a ship shall, after the end of the calendar year in which the transfer takes place, calculate and report the attained

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SOURCE: MEPC.328%2876%29.pdf
addressed in regulations 27.4, 27.5 or 27.6 completed after 1 January 2023, a ship shall, after the end of the calendar year in which the transfer takes place, calculate and report the attained annual operational CII for the full 12 -month period from 1 Jan uary to 31 December in the calendar year during which the transfer took place, in accordance with regulations 28.1 and 28.2, for verification in accordance with regulation 6.6 of this Annex, taking into account guidelines to be developed by the Organization. Nothing in this regulation relieves any ship of its reporting obligations under regulation 27 or this regulation of this Annex.

Required annual operational carbon intensity indicator (required annual operational CII)

4 For each ship of 5,000 gross tonnage and above which falls into one or more of the categories in regulations 2.2.5, 2.2.7, 2.2.9, 2.2.11, 2.2.14 to 2.2.16, 2.2.22, and 2.2.26 to

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4 For each ship of 5,000 gross tonnage and above which falls into one or more of the categories in regulations 2.2.5, 2.2.7, 2.2.9, 2.2.11, 2.2.14 to 2.2.16, 2.2.22, and 2.2.26 to 2.2.29 of this Annex, the required annual operational CII shall be determined as follows:

Required annual operational CII = (1 Z100) CIIR
where,

Z is the annual reduction factor to ensure continuous improvement of the ship 's operational carbon intensity within a specific rating level; and

CIIR is the reference value.

5 The annual reduction factor Z and the reference value CIIR shall be the values defined taking into account the guidelines to be developed by the Organization.
Operational carbon intensity rating

6 The attained annual operational CII shall be documented and verified against the required annual operational CII to determine operational carbon intensity rating A, B, C, D or

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6 The attained annual operational CII shall be documented and verified against the required annual operational CII to determine operational carbon intensity rating A, B, C, D or E, indicating a major superior, minor superior, moderate, minor inferior, or inferior performance

level, either by the Administration or by any organization duly authorized by it, taking into account the guidelines developed by the Organization. The middle point of rating level C shall be the value equivalent to the required annual operational CII set ou t in paragraph 4 of this regulation.

Corrective actions and incentives
RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 45 -

7 A ship rated as D for three consecutive years or rated as E shall develop a plan of corrective actions to achieve the required annual operational CII.

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SOURCE: MEPC.328%2876%29.pdf
7 A ship rated as D for three consecutive years or rated as E shall develop a plan of corrective actions to achieve the required annual operational CII.

8 The SEEMP shall be reviewed to include the plan of corrective actions accordingly , taking into account the guidelines to be developed by the Organization . The revised SEEMP shall be submitted to the Administration or any organization duly authorized by it for verification, preferably together with, but in no case later than 1 month after reporting the attained annual operational CII in accordance with paragraph 2 of this regulation.

9 A ship rated as D for three consecutive years or rated as E shall duly undertake the planned corrective actions in accordance with the revised SEEMP.

10 Administrations, port authorities and other stakeholders as appropriate, are encouraged to provide incentives to ships rated as A or B.

Review

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SOURCE: MEPC.328%2876%29.pdf
10 Administrations, port authorities and other stakeholders as appropriate, are encouraged to provide incentives to ships rated as A or B.

Review

11 A review shall be completed by 1 January 2026 by the Organization to assess:

.1 the effectiveness of this regulation in reducing the carbon intensity of international shipping;

.2 the need for reinforced corrective actions or other means of remedy, including possible additional EEXI requirements;

.3 the need for enhancement of the enforcement mechanism;

.4 the need for enhancement of the data collection system; and

.5 the revision of the Z factor and CIIR values.

If based on the review the Parties decide to adopt amendments to this regulation, such amendments shall be adopted and brought into force in accordance with the provisions of article 16 of the present Convention.

Regulation 29
Promotion of technical cooperation and transfer of technology relating to the improvement of

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SOURCE: MEPC.328%2876%29.pdf
article 16 of the present Convention.

Regulation 29
Promotion of technical cooperation and transfer of technology relating to the improvement of energy efficiency of ships

1 Administrations shall, in cooperation with the Organization and other international bodies, promote and provide support, as appropriate, directly or through the Organization to States that request technical assistance, especially developing States.

2 The Administration of a Party shall cooperate actively with other Parties, subject to its national laws, regulations and policies, to promote the development and transfer of technology and exchange of information to States which request technical assistance, particularly developing States, in respect of the implementation of measures to fulfil the requirements of chapter 4 of this Annex, in particular regulations 19.4 to 19.6.

RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE

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chapter 4 of this Annex, in particular regulations 19.4 to 19.6.

RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 46 -

Chapter 5 Verification of compliance with the provisions of this Annex

Regulation 30
Application

Parties shall use the provisions of the Code for Implementation in the execution of their obligations and responsibilities contained in this Annex.

Regulation 31
Verification of compliance

1 Every Party shall be subject to periodic audits by the Organization in accordance with the audit standard to verify compliance with and implementation of this Annex.

2 The Secretary-General of the Organization shall have responsibility for administering the Audit Scheme, based on the guidelines developed by the Organization.

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SOURCE: MEPC.328%2876%29.pdf
2 The Secretary-General of the Organization shall have responsibility for administering the Audit Scheme, based on the guidelines developed by the Organization.

3 Every Party shall have responsibility for facilitating the conduct of the audit and implementation of a programme of actions to address the findings, based on the guidelines developed by the Organization.

4 The audits of all Parties shall be:

.1 based on an overall schedule developed by the Secretary-General of the Organization, taking into account the guidelines developed by the Organization; and

.2 conducted at periodic intervals, taking into account the guidelines developed by the Organization.